

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

-----X  
Yancarlos Gomez, Alexander Mercedes, Luichy Gomez,  
Lidauris Gomez and Manuel Gomez,

: Index Number:  
Date Purchased:  
Date Filed:  
Plaintiffs : SUMMONS

-against- :

City of New York, New York City Police Department, :  
Police Officer Felix Rodriguez, Shield 10559 of the 41 :  
Precinct, Undercover Police Officer, Shield 13688 of the :  
41 Precinct and New York City Police Officers John Doe, :  
Plaintiff Yancarlos Gomez's :  
residence is: :  
25 East Mosholu Parkway :  
Bronx, NY 10467

Defendants  
-----X

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Verified Complaint in this action and serve a copy of your answer, or if the Verified Complaint is not served with this Summons to serve a notice of Appearance on the Plaintiffs attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Verified Complaint.

The basis of venue designated is that the cause of action arose and defendant resides in Bronx County.

Dated: November 10, 2017  
New York, NY

Yours, etc.

LAW OFFICES OF JASON A. STEINBERGER, LLC  
Attorney for Plaintiffs  
505 Eighth Avenue  
Suite 701  
New York, NY 10018  
(646) 256-1007

To: City of New York

New York City Police Department

Police Officer Felix Rodriguez, Shield 10559 of the 41 Precinct

Undercover Police Officer, Shield 13688 of the 41 Precinct

New York City Police Officers John Doe

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

-----X  
Yancarlos Gomez, Alexander Mercedes, Luichy Gomez, :  
Lidauris Gomez and Manuel Gomez,

Plaintiffs : VERIFIED COMPLAINT

-against- :

City of New York, New York City Police Department, :  
Police Officer Felix Rodriguez, Shield 10559 of the 41 :  
Precinct, Undercover Police Officer, Shield 13688 of the :  
41 Precinct and New York City Police Officers John Doe,

Defendants

-----X  
Plaintiff, by and through his attorney, JASON A. STEINBERGER, Esq, for his complaint,  
alleges upon information and belief as follows:

**STATEMENT OF FACTS**

1. That at all times hereinafter mentioned, Plaintiff Yancarlos Gomez, (hereinafter referred to as "YANCARLOS") is a resident of Bronx County, State of New York.
2. That at all times hereinafter mentioned, Plaintiff Alexander Mercedes, (hereinafter referred to as "MERCEDES") is a resident of Bronx County, State of New York.
3. That at all times hereinafter mentioned, Plaintiff Luichy Gomez (hereinafter referred to as "LUICHY") is a resident of Bronx County, State of New York.
4. That at all times hereinafter mentioned, Plaintiff Lidauris Gomez, (hereinafter referred to as "LIDAURIS") is a resident of Bronx County, State of New York.
5. That at all times hereinafter mentioned, Plaintiff Manuel Gomez, (hereinafter referred to as "GOMEZ") is a resident of Bronx County, State of New York.

6. That at all times hereinafter mentioned, Police Officer Felix Rodriguez, Shield 10559 of the 41 Precinct, (hereinafter referred to as "RODRIGUEZ") was employed by the New York City Police Department.
7. That at all times hereinafter mentioned, Undercover Police Officer, Shield 13688 of the 41 Precinct, (hereinafter referred to as "UC") was employed by the New York City Police Department.
8. That at all times New York City Police Officers John Doe, the New York City police officers, involved in arresting YANCARLOS, MERCEDES, LUICHY, LIDAURIS and GOMEZ, (hereinafter referred to as "DOES") were employed by the New York City Police Department.
9. That at all times hereinafter mentioned, Defendant City of New York, is a municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 1 Centre Street, County of New York State of New York.
10. That at all times hereinafter mentioned, Defendant New York City Police Department, is an agency created and maintained by the above municipal government.
11. On or about September 27, 2016 notice required by Municipal Law 50-E was given to City of New York, by personal service. Said notice set forth the facts underlying Plaintiffs' claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.
12. On or about February 14, 2017 a hearing required by Municipal Law 50-H was conducted as to each Plaintiff. At said hearing, Plaintiffs testified and set forth the facts underlying Plaintiffs' claim against the City of New York and its agents and employees. To

date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.

13. That on or about August 12, 2016 at approximately 11:00PM in the vicinity of Tiffany Street and Barry Street, Bronx, NY, Plaintiffs were inside of a vehicle headed home from a car festival when they were approached by UC.

14. That UC asked Plaintiffs if they wanted to have sex with her.

15. That Plaintiffs each began to laugh and spoke amongst themselves.

16. That at no time did any Plaintiff agree to have sex with UC.

17. That at no time did any Plaintiff offer any money to have sex with UC.

18. That RODRIGUEZ and DOES stopped the car Plaintiffs were in and then handcuffed and arrested them.

19. That at no time were Plaintiffs engaged in any illegal or unlawful behavior.

20. That after Plaintiffs were arrested, they were each transported to the 41 precinct in Bronx County.

21. That while Plaintiffs were inside of the 41 precinct, plaintiffs were held in a holding cell occupied with other individuals for several hours.

22. That after being held in a cell with other people at the 41 precinct for several hours Plaintiffs were removed to Central Booking, Bronx County Criminal Court, located at 215 East 161 Street, Bronx, NY.

23. That while inside of Central Booking Plaintiffs were forced to remain inside of a holding cell with numerous other individuals.

24. That while inside of Central Booking Plaintiffs were subjected to harassment from the other people inside of the cells.

25. That on or about August 14, 2016, the Plaintiffs were each arraigned in Bronx Criminal Court and charged with Patronizing a Prostitute in the Third Degree.

26. That at the time of their arraignment, each Plaintiff was released on their own recognizance.

27. That on or about January 21, 2017 the cases against Plaintiffs were dismissed upon application of the Office of the Bronx District Attorney.

**AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANTS**

28. Plaintiff YANCARLOS repeats, reiterates and realleges the allegations contained in paragraphs 1 through 20, as if more fully stated herein at length.

29. That Defendants acted with actual malice toward Plaintiff YANCARLOS and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.

30. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

31. That as a result of the actions by Defendants, Plaintiff YANCARLOS was traumatized and fears his physical safety when she sees and encounters members of the New York City Police Department from that day and onward.

32. That as a result of the Defendants' actions, Plaintiff YANCARLOS has been unable to sleep.

33. That as a result of the Defendants' actions, Plaintiff YANCARLOS was forced to miss multiple days of work.

34. That as a result of the Defendants' actions Plaintiff YANCARLOS sustained damage to her person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

**AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS**

35. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 34, as if more fully stated herein at length.

36. The intentional verbal abuse, false arrest and false imprisonment by Defendants violated the rights of the Plaintiff YANCARLOS as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

37. Defendants having no lawful authority to arrest Plaintiff YANCARLOS, did, nevertheless, unlawfully arrest Plaintiff YANCARLOS with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff YANCARLOS is entitled to both compensatory and exemplary damages.

**AS AND FOR A THIRD CAUSE OF ACTION AS AGAINST THE DEFENDANTS**

38. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 37, as if more fully stated herein at length.

39. Defendants conspired to violate Plaintiff YANCARLOS's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff YANCARLOS is entitled to both compensatory and exemplary damages, as well as attorney's fees.

**AS AND FOR A FOURTH CAUSE OF ACTION AS AGAINST DEFENDANTS**

40. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 39, as if more fully stated herein at length.

41. Plaintiff YANCARLOS was verbally abused, falsely arrested and falsely imprisoned by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff YANCARLOS to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest and false imprisonment on and of Plaintiff YANCARLOS by Defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff YANCARLOS. Plaintiff YANCARLOS is thus entitled to compensatory and exemplary damages.

**AS AND FOR A FIFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND  
NEW YORK CITY POLICE DEPARTMENT**

42. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 41, as if more fully stated herein at length.

43. At all times pertinent hereto, RODRIGUEZ, UC and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

44. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that RODRIGUEZ, UC and DOES committed within the scope of their employment.



AS AND FOR A SIXTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND  
NEW YORK CITY POLICE DEPARTMENT

45. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 44, as if more fully stated herein at length.

46. The City of New York and New York City Police Department's failure to provide adequate training and supervision to RODRIGUEZ, UC and DOES constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff YANCARLOS. Plaintiff YANCARLOS is thus entitled to compensatory exemplary damages.

AS AND FOR A SEVENTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK  
AND NEW YORK CITY POLICE DEPARTMENT

47. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 46, as if more fully stated herein at length.

48. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff YANCARLOS.

49. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff YANCARLOS.

AS AND FOR AN EIGHTH CAUSE OF ACTION AS AGAINST DEFENDANTS

50. Plaintiff MERCEDES repeats, reiterates and realleges the allegations contained in paragraphs 1 through 49 as if more fully stated herein at length.

51. That Defendants acted with actual malice toward Plaintiff MERCEDES and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff MERCEDES.

52. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

53. That as a result of the actions by Defendants, Plaintiff MERCEDES was traumatized and fears for his physical safety when he sees and encounter members of the New York City Police Department from that day and onward.

54. That as a result of the Defendants' actions, Plaintiff MERCEDES has been unable to sleep.

55. That as a result of the Defendants' actions, Plaintiff MERCEDES was forced to miss multiple days of work.

56. That as a result of the Defendants' actions Plaintiff MERCEDES sustained damage to their persons in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A NINTH CAUSE OF ACTION AGAINST DEFENDANTS

57. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 56, as if more fully stated herein at length.

58. The intentional verbal abuse, false arrest and false imprisonment by Defendants violated the rights of Plaintiff MERCEDES as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

59. Defendants having no lawful authority to arrest Plaintiff MERCEDES, did, nevertheless, unlawfully arrest Plaintiff MERCEDES with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff MERCEDES is entitled to both compensatory and exemplary damages.

AS AND FOR A TENTH CAUSE OF ACTION AS AGAINST DEFENDANTS

60. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 59, as if more fully stated herein at length.

61. Defendants conspired to violate Plaintiff MERCEDES's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff MERCEDES is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A ELEVENTH CAUSE OF ACTION AS AGAINST DEFENDANTS

62. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 61, as if more fully stated herein at length.

63. Plaintiff was verbally abused, falsely arrested and falsely imprisoned by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff MERCEDES to suffer physical and severe emotional distress for which the Defendants are individually liable. The

verbal abuse, false arrest and false imprisonment on and of Plaintiff MERCEDES by Defendants was unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff MERCEDES. Plaintiff MERCEDES is thus entitled to compensatory and exemplary damages.

AS AND FOR A TWELFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK  
AND NEW YORK CITY POLICE DEPARTMENT

64. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 63, as if more fully stated herein at length.

65. At all times pertinent hereto, RODRIGUEZ, UC and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

66. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that RODRIGUEZ, UC and DOES committed within the scope of their employment.

AS AND FOR A THIRTEENTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK  
AND NEW YORK CITY POLICE DEPARTMENT

67. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 59, as if more fully stated herein at length.

68. The City of New York and New York City Police Department's failure to provide adequate training and supervision to RODRIGUEZ, UC and DOES constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff MERCEDES. Plaintiff MERCEDES is thus entitled to compensatory exemplary damages.

AS AND FOR A FOURTEENTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK  
AND NEW YORK CITY POLICE DEPARTMENT

69. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 68, as if more fully stated herein at length.

70. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff MERCEDES.

71. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff MERCEDES.

AS AND FOR AN FIFTEENTH CAUSE OF ACTION AS AGAINST DEFENDANTS

72. Plaintiff LUICHY repeats, reiterates and realleges the allegations contained in paragraphs 1 through 71 as if more fully stated herein at length.

73. That Defendants acted with actual malice toward Plaintiff LUICHY and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff LUICHY.

74. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

75. That as a result of the actions by Defendants, Plaintiff LUICHY was traumatized and fears for his physical safety when she sees and encounter members of the New York City Police Department from that day and onward.

76. That as a result of the Defendants' actions, Plaintiff LUICHY has been unable to sleep.

77. That as a result of the Defendants' actions, Plaintiff LUICHY was forced to miss multiple days of work.

78. That as a result of the Defendants' actions Plaintiff LUICHY sustained damage to their persons in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A SIXTEENTH CAUSE OF ACTION AGAINST DEFENDANTS

79. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 78, as if more fully stated herein at length.

80. The intentional verbal abuse, false arrest and false imprisonment by Defendants violated the rights of Plaintiff LUICHY as guaranteed by the Fourth, Fifth and Eighth Amendments to the Unites States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

81. Defendants having no lawful authority to arrest Plaintiff LUICHY, did, nevertheless, unlawfully arrest Plaintiff LUICHY with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff LUICHY is entitled to both compensatory and exemplary damages.

**AS AND FOR A SEVENTEENTH CAUSE OF ACTION AS AGAINST DEFENDANTS**

82. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 81, as if more fully stated herein at length.

83. Defendants conspired to violate Plaintiff LUICHY's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff LUICHY is entitled to both compensatory and exemplary damages, as well as attorney's fees.

**AS AND FOR A EIGHTEENTH CAUSE OF ACTION AS AGAINST DEFENDANTS**

84. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 83, as if more fully stated herein at length.

85. Plaintiff was verbally abused, falsely arrested and falsely imprisoned by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff LUICHY to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest and false imprisonment on and of Plaintiff LUICHY by Defendants was unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff LUICHY. Plaintiff LUICHY is thus entitled to compensatory and exemplary damages.

**AS AND FOR A NINETEENTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK  
AND NEW YORK CITY POLICE DEPARTMENT**

86. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 85, as if more fully stated herein at length.

87. At all times pertinent hereto, RODRIGUEZ, UC and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

88. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that RODRIGUEZ, UC and DOES committed within the scope of their employment.

AS AND FOR A TWENTIETH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK  
AND NEW YORK CITY POLICE DEPARTMENT

89. Plaintiffs repeat, reiterates and realleges the allegations contained in paragraphs 1 through 88, as if more fully stated herein at length.

90. The City of New York and New York City Police Department's failure to provide adequate training and supervision to RODRIGUEZ, UC and DOES constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff LUICHY. Plaintiff LUICHY is thus entitled to compensatory exemplary damages.

AS AND FOR A TWENTY-FIRST CAUSE OF ACTION AS AGAINST CITY OF NEW  
YORK AND NEW YORK CITY POLICE DEPARTMENT

91. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 90, as if more fully stated herein at length.

92. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff LUICHY.



93. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff LUICHY.

AS AND FOR AN TWENTY-SECOND CAUSE OF ACTION AS AGAINST DEFENDANTS

94. Plaintiff LIDAURIS repeats, reiterates and realleges the allegations contained in paragraphs 1 through 93 as if more fully stated herein at length.

95. That Defendants acted with actual malice toward Plaintiff LIDAURIS and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff LIDAURIS.

96. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

97. That as a result of the actions by Defendants, Plaintiff LIDAURIS was traumatized and fears for his physical safety when she sees and encounter members of the New York City Police Department from that day and onward.

98. That as a result of the Defendants' actions, Plaintiff LIDAURIS has been unable to sleep.

99. That as a result of the Defendants' actions, Plaintiff LIDAURIS was forced to miss multiple days of work.

100. That as a result of the Defendants' actions Plaintiff LIDAURIS sustained damage to their persons in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

**AS AND FOR A TWENTY-THIRD CAUSE OF ACTION AGAINST DEFENDANTS**

101. Plaintiffs repeat, reiterates and realleges the allegations contained in paragraphs 1 through 100, as if more fully stated herein at length.

102. The intentional verbal abuse, false arrest and false imprisonment by Defendants violated the rights of Plaintiff LIDAURIS as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

103. Defendants having no lawful authority to arrest Plaintiff LIDAURIS, did, nevertheless, unlawfully arrest Plaintiff LIDAURIS with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff LIDAURIS is entitled to both compensatory and exemplary damages.

**AS AND FOR A TWENTY-FOURTH CAUSE OF ACTION AS AGAINST DEFENDANTS**

104. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 103, as if more fully stated herein at length.

105. Defendants conspired to violate Plaintiff LIDAURIS's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff LIDAURIS is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A TWENTY-FIFTH CAUSE OF ACTION AS AGAINST DEFENDANTS

106. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 105, as if more fully stated herein at length.

107. Plaintiff was verbally abused, falsely arrested and falsely imprisoned by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff LIDAURIS to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest and false imprisonment on and of Plaintiff LIDAURIS by Defendants was unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff LIDAURIS. Plaintiff LIDAURIS is thus entitled to compensatory and exemplary damages.

AS AND FOR A TWENTY-SIXTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT

108. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 107, as if more fully stated herein at length.

109. At all times pertinent hereto, RODRIGUEZ, UC and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

110. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that RODRIGUEZ, UC and DOES committed within the scope of their employment.

AS AND FOR A TWENTY-SEVENTH CAUSE OF ACTION AS AGAINST CITY OF NEW  
YORK AND NEW YORK CITY POLICE DEPARTMENT

111. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 110, as if more fully stated herein at length.

112. The City of New York and New York City Police Department's failure to provide adequate training and supervision to RODRIGUEZ, UC and DOES constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff LIDAURIS. Plaintiff LIDAURIS is thus entitled to compensatory exemplary damages.

AS AND FOR A TWENTY-EIGHTH CAUSE OF ACTION AS AGAINST CITY OF NEW  
YORK AND NEW YORK CITY POLICE DEPARTMENT

113. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 112, as if more fully stated herein at length.

114. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff LIDAURIS.

115. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff LIDAURIS.

AS AND FOR AN TWENTY-NINTH CAUSE OF ACTION AS AGAINST DEFENDANTS

116. Plaintiff GOMEZ repeats, reiterates and realleges the allegations contained in paragraphs 1 through 115 as if more fully stated herein at length.

117. That Defendants acted with actual malice toward Plaintiff GOMEZ and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff GOMEZ.

118. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

119. That as a result of the actions by Defendants, Plaintiff GOMEZ was traumatized and fears for his physical safety when she sees and encounter members of the New York City Police Department from that day and onward.

120. That as a result of the Defendants' actions, Plaintiff GOMEZ has been unable to sleep.

121. That as a result of the Defendants' actions, Plaintiff GOMEZ was forced to miss multiple days of work.

122. That as a result of the Defendants' actions Plaintiff GOMEZ sustained damage to their persons in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A THIRTIETH CAUSE OF ACTION AGAINST DEFENDANTS

123. Plaintiffs repeat, reiterates and realleges the allegations contained in paragraphs 1 through 122, as if more fully stated herein at length.

124. The intentional verbal abuse, false arrest and false imprisonment by Defendants violated the rights of Plaintiff GOMEZ as guaranteed by the Fourth, Fifth and Eighth Amendments to the Unites States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

125. Defendants having no lawful authority to arrest Plaintiff GOMEZ, did, nevertheless, unlawfully arrest Plaintiff GOMEZ with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff GOMEZ is entitled to both compensatory and exemplary damages.

AS AND FOR A THIRTY-FIRST CAUSE OF ACTION AS AGAINST DEFENDANTS

126. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 125, as if more fully stated herein at length.

127. Defendants conspired to violate Plaintiff GOMEZ's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff GOMEZ is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A THIRTY-SECOND CAUSE OF ACTION AS AGAINST DEFENDANTS

128. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 127, as if more fully stated herein at length.

129. Plaintiff was verbally abused, falsely arrested and falsely imprisoned by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff GOMEZ to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest and false imprisonment on and of Plaintiff GOMEZ by Defendants was unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff GOMEZ. Plaintiff GOMEZ is thus entitled to compensatory and exemplary damages.

AS AND FOR A THIRTY-THIRD CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT

130. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 129, as if more fully stated herein at length.

131. At all times pertinent hereto, RODRIGUEZ, UC and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

132. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that RODRIGUEZ, UC and DOES committed within the scope of their employment.

AS AND FOR A THIRTY-FOURTH CAUSE OF ACTION AS AGAINST CITY OF NEW  
YORK AND NEW YORK CITY POLICE DEPARTMENT

133. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 132, as if more fully stated herein at length.

134. The City of New York and New York City Police Department's failure to provide adequate training and supervision to RODRIGUEZ, UC and DOES constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff GOMEZ. Plaintiff GOMEZ is thus entitled to compensatory exemplary damages.

AS AND FOR A THIRTY-FIFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK  
AND NEW YORK CITY POLICE DEPARTMENT

135. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 112, as if more fully stated herein at length.

136. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff GOMEZ.

137. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff GOMEZ.



WHEREFORE, Plaintiffs each demand judgment against the Defendants as follows:

**On the first cause of action**, a sum within the jurisdiction of this Court and in excess of all inferior courts;

**On the second cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

**On the third cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

**On the fourth cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

**On the fifth cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

**On the sixth cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

**On the seventh cause of action**, a sum within the jurisdiction of this Court and in excess of all inferior courts.

**On the eighth cause of action**, a sum within the jurisdiction of this Court and in excess of all inferior courts;

**On the ninth cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

**On the tenth cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

**On the eleventh cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

**On the twelfth cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

**On the thirteenth cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

**On the fourteenth cause of action**, a sum within the jurisdiction of this Court and in excess of all inferior courts.

**On the fifteenth cause of action**, a sum within the jurisdiction of this Court and in excess of all inferior courts;

**On the sixteenth cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

**On the seventeenth cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

**On the eighteenth cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

**On the nineteenth cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

**On the twentieth cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

**On the twenty-first cause of action**, a sum within the jurisdiction of this Court and in excess of all inferior courts.

**On the twenty-second cause of action**, a sum within the jurisdiction of this Court and in excess of all inferior courts;

**On the twenty-third cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the

jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

**On the twenty-fourth cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

**On the twenty-fifth cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

**On the twenty-sixth cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

**On the twenty-seventh cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

**On the twenty-eighth cause of action**, a sum within the jurisdiction of this Court and in excess of all inferior courts.

**On the twenty-ninth cause of action**, a sum within the jurisdiction of this Court and in excess of all inferior courts;

**On the thirtieth cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

**On the thirty-first cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

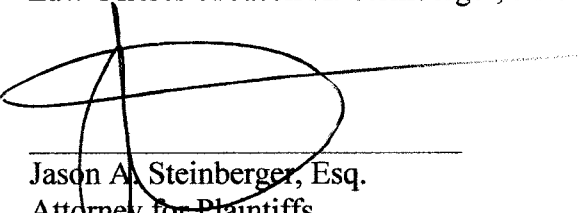
**On the thirty-second cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

**On the thirty-third cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

**On the thirty-fourth cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

**On the thirty-fifth cause of action**, a sum within the jurisdiction of this Court and in excess of all inferior courts.

Law Offices of Jason A. Steinberger, LLC

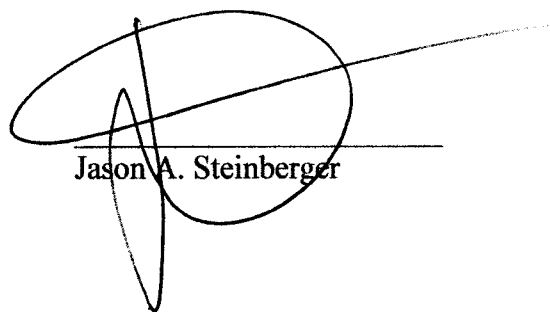


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Jason A. Steinberger, Esq.  
Attorney for Plaintiffs  
505 Eighth Avenue  
Suite 701  
New York, NY 10018  
(646) 256-1007

## STATE OF NEW YORK: COUNTY OF NEW YORK

The undersigned, an attorney admitted to practice in the State of New York, under penalties of perjury, affirms the following to be true: Affirmant has read the foregoing Complaint and the contents thereof; the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters affirmant believes it to be true; and the reason this verification is made by affirmant and not by the plaintiff is because the plaintiff is not within the county in which your affirmant maintains his principal office. The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are communications with the plaintiff, review of records and documents within affirmant's possession.

Affirmed: November 10, 2017



Jason A. Steinberger

**Index Number:****SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX****YANCARLOS GOMEZ, ALEXANDER MERCEDES, LUCHY GOMEZ, LIDAURIS  
GOMEZ AND MANUEL GOMEZ,**

Plaintiffs

**-against-****CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE  
OFFICER FELIX FERDINAND, SHIELD 10559 OF THE 41 PRECINCT, UNDER  
COVER POLICE OFFICER, SHIELD 13688 OF THE 41 PRECINCT AND NEW YORK  
CITY POLICE OFFICERS JOHN DOE,**

Defendant.

**SUMMONS AND COMPLAINT****LAW OFFICES OF JASON A. STEINBERGER, LLC**

505 Eighth Avenue

Suite 701

New York, NY 10018

To:

Attorney (s) for Defendant(s)

Service of a copy of the within

is hereby admitted.

Dated:

\_\_\_\_\_  
Attorney(s) for**PLEASE TAKE NOTICE**☐

that the within is a (certified) true copy of

☐

entered in the office of the clerk of the within named Court on

**NOTICE****OF ENTRY**☐that an Order of which the within is a true copy will be presented for settlement to the Hon.  
once of the Judges of the within named Court,**NOTICE OF****SETTLEMENT**

at

on

200 , at m.

Dated:

**JASON A. STEINBERGER, ESQ.**

505 Eighth Avenue, Suite 701

New York, NY 10018

To:

Attorney(s) for